

SENATE BILL No. 194

DIGEST OF INTRODUCED BILL

Citations Affected: IC 2-1-9.5; IC 3-3.

Synopsis: Redistricting standards. Establishes redistricting standards for state legislative congressional districts. Requires the initial proposed plans for congressional and state legislative districts to comply with the redistricting standards. Allows the general assembly, during the process by which the initial proposed plans become effective by being enacted as a law, to consider and adopt modifications to the initial proposed plans that deviate from the redistricting standards as long as the reason or reasons for each deviation are publicly explained and documented. Specifies that the general assembly may not establish or modify legislative or congressional districts other than at the first regular session of the general assembly convening immediately following the federal decennial census, except in response to a court order that has invalidated some part of a redistricting plan.

Effective: July 1, 2026.

Walker G

January 6, 2026, read first time and referred to Committee on Elections.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 194

A BILL FOR AN ACT to amend the Indiana Code concerning the general assembly.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 2-1-9.5 IS ADDED TO THE INDIANA CODE AS
2 A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]:

4 **Chapter 9.5. Redistricting Standards Relating to Establishing**
5 **Legislative Districts**

6 **Sec. 1. Except as provided in section 18 of this chapter, districts**
7 **created for the house of representatives and the senate must**
8 **comply with the standards set forth in this chapter.**

9 **Sec. 2. As used in this chapter, "federal decennial census" refers**
10 **to the federal decennial census conducted under 13 U.S.C. 141.**

11 **Sec. 3. As used in this chapter, "house of representatives" refers**
12 **to the house of representatives of the general assembly.**

13 **Sec. 4. As used in this chapter, "ideal district population" for a**
14 **plan refers to the number equal to the quotient of the following,**
15 **rounded to the nearest whole number:**

16 **(1) The numerator is the population of Indiana as reported by**
17 **the most recent federal decennial census.**



(2) The denominator is the number of districts required by this chapter for the plan.

Sec. 5. (a) As used in this chapter, "plan" refers to either of the following:

(1) A plan for districts for the house of representatives.

(2) A plan for districts for the senate.

(b) A plan includes maps and written descriptions of the maps that define all the districts that a plan is required to have under this chapter.

Sec. 6. As used in this chapter, "political subdivision" means a city, county, town, or township.

Sec. 7. As used in this chapter, "senate" refers to the senate of the general assembly.

Sec. 8. Except as provided in IC 2-1-9-13, the general assembly may not establish or modify districts for the house of representatives or for the senate other than at the first regular session of the general assembly convening immediately following the federal decennial census.

Sec. 9. (a) A plan for house of representatives districts must provide for one hundred (100) districts.

(b) A plan for senate districts must provide for fifty (50) districts.

Sec. 10. Districts must be established on the basis of population.

Sec. 11. The population of a district of the house of representatives or the senate may not deviate from the ideal district population by more than two percent (2%) of the ideal district population.

Sec. 12. Districts must be as compact as possible to the extent practicable while considering other provisions of this chapter and the federal Voting Rights Act.

Sec. 13. (a) Districts must be composed of contiguous territory.

(b) Areas that meet only at the point of adjoining corners are not considered contiguous.

Sec. 14. Districts must not breach precinct boundaries.

Sec. 15. To the extent possible consistent with sections 10 through 14 of this chapter, district boundaries must seek to coincide with the boundaries of Indiana political subdivisions as follows:

(1) The number of counties and cities divided among more than one (1) district shall be minimized.

(2) Except as provided in subdivision (3), if there is a choice between political subdivisions to be divided, a more populous



political subdivision shall be divided before a less populous political subdivision is divided.

(3) Subdivision (2) does not apply to a district boundary drawn along a county line that passes through a municipality that lies in more than one (1) county.

Sec. 16. (a) To the extent practicable, a plan must seek to minimize the division among more than one (1) district of geographical areas, such as neighborhoods of a city, public school corporation attendance districts, or regions of Indiana, where the residents have common cultural, ethnic, political, or socioeconomic interests that do not necessarily coincide with the boundaries of a political subdivision, such as a city or county.

(b) In establishing districts for a plan, consideration must be given to the effect that the plan has on language minority groups and racial minority groups as required by the federal Voting Rights Act.

Sec. 17. (a) In establishing a plan for house of representative districts, the residential address of an incumbent representative may not be identified or considered.

(b) In establishing a plan for senate districts, the residential address of an incumbent senator may not be identified or considered.

Sec. 18. The initial proposed plans of districts for the house of representatives and the senate must comply with the standards set forth in this chapter. However, during the process by which the initial proposed plans become effective by being enacted as a law as provided in the Constitution of the State of Indiana, the general assembly may consider and adopt modifications to the initial proposed plans that deviate from the standards set forth in this chapter as long as the reason or reasons for each deviation are publicly explained and documented.

SECTION 2. IC 3-3-2-2, AS AMENDED BY P.L.133-2021, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) This subsection applies only to the first regular session of the one hundred twenty-second general assembly. If the general assembly adjourns sine die before November 15, 2021, without having complied with the requirements of section 1 of this chapter, a redistricting commission is established. The redistricting commission consists of the speaker of the house, the president pro tem of the senate, the chairpersons of the senate and house committees responsible for legislative apportionment, and a fifth member appointed by the governor from the membership of the general



assembly.

(b) ~~(a)~~ This subsection applies to a session of the general assembly beginning after November 15, 2021. If a session of the general assembly adjourns without having complied with the requirements of section 1 of this chapter or if for any other reason at any time the state finds itself without a valid congressional district law **because any portion of a congressional district in effect is found to be invalid by a court order**, a redistricting commission shall be established which shall consist of the speaker of the house, the president pro tem of the senate, the chairman of the senate and house committees responsible for legislative apportionment and a fifth member who shall be appointed by the governor from the membership of the general assembly.

~~(c)~~ (b) The redistricting commission shall meet within thirty (30) days after adjournment of the general assembly at a time and place designated by the president pro tem of the senate and shall adopt a congressional redistricting plan in accordance with this chapter.

~~(d)~~ (c) Any plan so adopted shall be signed by a majority of the redistricting committee and submitted to the governor who forthwith shall issue and publish the governor's executive order establishing congressional districts in accordance with the plan so adopted and directing the commission to place such congressional districts in effect for the primary and general elections next succeeding such general assembly. **Except as provided in subsection (d), congressional districts so established shall continue in effect until changed by statute. the congressional districts may be established under section 1 of this chapter.**

(d) The provisions of a congressional redistricting plan are severable as provided in IC 1-1-1-8(b). If:

(1) any portion of a congressional redistricting plan; or

(2) application of any portion of a congressional redistricting plan to any person or circumstance;

is found to be invalid by a court, the invalidity does not affect the remaining portions or applications of the congressional redistricting plan, including the remaining districts, that can be given effect without the invalid portions, applications, or districts.

(e) The general assembly reserves the right to replace any congressional redistricting plan mandated by a court immediately, if in session or, if not in session, in a special session or the next regular session, whichever comes first.

SECTION 3. IC 3-3-4.5 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY



1, 2026]:

Chapter 4.5. Redistricting Standards Relating to Establishing Congressional Districts

Sec. 1. Except as provided in section 16 of this chapter, districts created for the United States House of Representatives must comply with the standards of this chapter.

Sec. 2. As used in this chapter, "federal decennial census" refers to the federal decennial census conducted under 13 U.S.C. 141.

Sec. 3. As used in this chapter, "ideal district population" for a plan refers to the number equal to the quotient of the following, rounded to the nearest whole number:

(1) The numerator is the population of Indiana as reported by the most recent federal decennial census.

(2) The denominator is the number of districts required by this chapter for the plan.

Sec. 4. (a) As used in this chapter, "plan" refers to a plan for congressional districts.

(b) A plan includes maps and written descriptions of the maps that define all the districts that a plan is required to have under this chapter.

Sec. 5. As used in this chapter, "political subdivision" means a city, county, town, or township.

Sec. 6. A plan for congressional districts must provide for as many districts as are allocated to Indiana under 2 U.S.C. 2a.

Sec. 7. Except as provided in IC 3-3-2-2, the general assembly may not establish or modify congressional districts other than at the first regular session of the general assembly convening immediately following the federal decennial census.

Sec. 8. Districts must be established on the basis of population.

Sec. 9. The population of a district must be as equal as practicable to the ideal district population.

Sec. 10. Districts must be as compact as possible to the extent practicable while considering other provisions of this chapter and the federal Voting Rights Act.

Sec. 11. (a) Districts must be composed of contiguous territory.

(b) Areas that meet only at the point of adjoining corners are not considered contiguous.

Sec. 12. Districts must not breach precinct boundaries.

Sec. 13. To the extent possible consistent with sections 8 through 12 of this chapter, district boundaries must seek to coincide with the boundaries of Indiana political subdivisions as follows:

(1) The number of counties and cities divided among more



1 than one (1) district shall be minimized.

2 (2) Except as provided in subdivision (3), if there is a choice
3 between political subdivisions to be divided, a more populous
4 political subdivision shall be divided before a less populous
5 political subdivision is divided.

6 (3) Subdivision (2) does not apply to a district boundary
7 drawn along a county line that passes through a municipality
8 that lies in more than one (1) county.

9 Sec. 14. (a) To the extent practicable, a plan must seek to
10 minimize the division among more than one (1) district of
11 geographical areas, such as neighborhoods of a city, public school
12 corporation attendance districts, or regions of Indiana, where the
13 residents have common cultural, ethnic, political, or socioeconomic
14 interests that do not necessarily coincide with the boundaries of a
15 political subdivision, such as a city or county.

16 (b) In establishing districts for a plan, consideration must be
17 given to the effect that the plan has on language minority groups
18 and racial minority groups as required by the federal Voting
19 Rights Act.

20 Sec. 15. In establishing a plan for congressional districts, the
21 residential address of an incumbent United States Representative
22 may not be identified or considered.

23 Sec. 16. The initial proposed plan for congressional districts
24 must comply with the standards set forth in this chapter. However,
25 during the process by which the initial proposed plans become
26 effective by being enacted as a law as provided by IC 3-3-2-1, the
27 general assembly may consider and adopt modifications to the
28 initial proposed plans that deviate from the standards set forth in
29 this chapter as long as the reason or reasons for each deviation are
30 publicly explained and documented.

